

# ONLYGIGZ TERMS OF SERVICE

Effective Date: August 8, 2026

Last Updated: August 8, 2026

These Terms of Service (“Terms”) govern your access to and use of the OnlyGigz mobile applications, websites, software, services, features, and related technology (collectively, the “Platform”) provided by OnlyGigz, LLC (“OnlyGigz,” “we,” “us,” or “our”).

By creating an account, accessing the Platform, posting or applying for a Gig, making or accepting a booking, or otherwise using the Platform, you agree to these Terms and all policies incorporated into these Terms by reference.

If you do not agree to these Terms, you may not use the Platform.

## 1. ABOUT ONLYGIGZ

OnlyGigz is a live entertainment booking platform designed to connect individuals and businesses seeking entertainment with entertainers seeking performance opportunities.

Users of the Platform may include musicians, bands, DJs, performers, entertainers, agents, managers, venues, event planners, promoters, businesses, organizations, private event hosts, and other individuals or entities involved in live entertainment.

For purposes of these Terms:

“Entertainer” means a user offering entertainment or performance services through the Platform.

“Organizer” means a user seeking, posting, arranging, or purchasing entertainment services through the Platform.

“Gig” means a performance opportunity, event, engagement, or other entertainment service offered, posted, discovered, or booked through the Platform.

“Booking” means an arrangement between an Entertainer and Organizer for entertainment services.

## 2. ONLYGIGZ'S ROLE

OnlyGigz provides technology and booking-related services that facilitate connections and transactions between Entertainers and Organizers. OnlyGigz may provide tools that allow users to:

- Create profiles
- Discover entertainment opportunities
- Post Gigs
- Apply for Gigs
- Discover and contact Entertainers
- Communicate through the Platform
- Negotiate booking terms
- Generate performance agreements
- Electronically execute agreements
- Coordinate booking details
- Process payments through third-party payment providers
- Manage calendars and booking information
- Submit ratings or reviews
- Access other booking-related services

Unless expressly stated otherwise, OnlyGigz is not a party to the performance agreement between an Entertainer and Organizer.

The contract for entertainment services is between the Entertainer and Organizer.

OnlyGigz may facilitate the creation of a performance agreement based upon information and terms supplied or agreed to by the parties. Providing or generating such an agreement does not make OnlyGigz a party to that agreement.

OnlyGigz does not become an employer, employee, agent, partner, joint venturer, representative, talent purchaser, venue operator, or entertainment provider solely because users utilize the Platform.

### **3. ELIGIBILITY**

You must be at least eighteen (18) years old and legally capable of entering into a binding contract to create an account or enter into a Booking through OnlyGigz.

If you use OnlyGigz on behalf of a company, band, venue, organization, or other entity, you represent that you have authority to bind that entity to these Terms and to any Booking you enter into on its behalf.

You are responsible for ensuring that your use of OnlyGigz complies with applicable laws and regulations.

Minor Performers. An account may only be created and held by an individual who is at least eighteen (18) years old. However, the entertainment services performed under a Booking may be provided in whole or in part by a minor (for example, a minor musician, band member, or member of a performing group) where the account holder is the minor's parent, legal guardian, band leader, agent, or other authorized adult representative with legal authority to book performances on the minor's behalf. The adult account holder is solely responsible for confirming that authority and for compliance with all applicable child labor, work-permit, chaperone, and entertainment-licensing laws. OnlyGigz does not independently verify a minor performer's identity, age, work eligibility, or the account holder's authority to represent the minor, and assumes no responsibility for doing so.

### **4. USER ACCOUNTS**

Certain Platform features require an account.

You agree to provide accurate, current, and complete information and to keep your account information updated.

You are responsible for:

- Maintaining the confidentiality of your login credentials
- Activity conducted through your account
- Ensuring that individuals using your account are authorized to do so
- Promptly notifying OnlyGigz of suspected unauthorized access

You may not impersonate another person or business, create an account using materially false information, or misrepresent your identity or authority.

OnlyGigz may suspend, restrict, or terminate accounts that violate these Terms or present a risk to the Platform or its users.

### **5. ENTERTAINER PROFILES**

Entertainers may create profiles containing information such as:

- Stage or business name
- Biography
- Genres
- Instruments or performance types
- Performance format
- Service area

- Rates or pricing information
- Availability
- Photos
- Videos
- Audio
- Social media links
- Performance history
- Reviews
- Other information relevant to bookings

Entertainers are responsible for ensuring that their profile information is accurate and that they have the necessary rights and permissions to upload or display all submitted content.

OnlyGigz does not independently guarantee the accuracy, experience, qualifications, identity, availability, licensing, insurance, or suitability of an Entertainer.

## 6. ORGANIZER ACCOUNTS AND GIG POSTINGS

Organizers may post Gigs and provide information including:

- Event date
- Performance time
- Location
- Type of event
- Entertainment requested
- Genre preferences
- Budget
- Performance duration
- Sound or production requirements
- Age restrictions
- Venue requirements
- Load-in information
- Payment terms
- Other relevant details

Organizers are responsible for providing accurate information.

A Gig posting is not necessarily a guaranteed offer of employment or engagement unless and until the applicable parties enter into a confirmed Booking.

OnlyGigz may remove or restrict Gig postings that are misleading, unlawful, fraudulent, discriminatory where prohibited by law, unsafe, inappropriate, or otherwise violate these Terms.

## 7. GIG DISCOVERY AND MATCHING

OnlyGigz may use information supplied by users and other Platform data to recommend Entertainers, Organizers, or Gigs.

Recommendations or matches may consider factors such as location, genre, availability, performance type, pricing, experience, preferences, and other relevant information.

A recommendation, ranking, match, notification, or search result does not guarantee that:

- An Entertainer will be selected

- An Organizer will receive applications
- A Booking will occur
- A user is qualified or suitable
- A Gig will remain available
- Any particular result will occur

Users remain responsible for evaluating potential Booking partners.

## **8. GIG LEADS AND PUBLICLY AVAILABLE INFORMATION**

OnlyGigz may identify or display entertainment opportunities derived from publicly available sources.

These opportunities may be identified as leads, discovered opportunities, public opportunities, or similar terminology.

A publicly discovered Gig lead may not have been posted directly by the Organizer on OnlyGigz.

OnlyGigz does not guarantee the availability, accuracy, completeness, legitimacy, compensation, or current status of externally discovered opportunities.

Users should independently verify an opportunity before relying upon it or entering into an agreement.

## **9. BOOKINGS**

A Booking occurs when the applicable Entertainer and Organizer agree to the material terms of an engagement and complete the confirmation process required by the Platform.

Booking terms may include:

- Date and time
- Location
- Compensation
- Deposit
- Performance duration
- Number of performers
- Production requirements
- Cancellation terms
- Payment schedule
- Travel requirements
- Hospitality requirements
- Other agreed terms

Users are responsible for reviewing all Booking information before accepting or signing an agreement.

Once accepted, the applicable performance agreement is binding between the Entertainer and Organizer according to its terms.

## **10. PERFORMANCE AGREEMENTS AND ELECTRONIC SIGNATURES**

OnlyGigz may generate a digital performance agreement using Booking information provided or approved by the Entertainer and Organizer.

The agreement is provided as a convenience to facilitate the Booking.

The performance agreement is between the Entertainer and Organizer. OnlyGigz is not a party to the performance agreement unless OnlyGigz expressly agrees otherwise in writing.

Each party is responsible for reviewing the agreement before signing it.

OnlyGigz does not provide legal advice, and automatically generated agreements should not be interpreted as legal advice or as a substitute for advice from a qualified attorney.

Users consent to the use of electronic records and electronic signatures where permitted by applicable law.

## **11. PAYMENTS**

Payments associated with Bookings may be processed through a third-party payment provider selected by OnlyGigz.

OnlyGigz is not a bank, financial institution, or credit card processor.

By using payment features, users may also be required to agree to the payment provider's terms and policies.

Payment processing may include:

- Booking payments
- Deposits
- Remaining balances
- Platform fees
- Processing fees
- Payouts
- Refunds
- Chargebacks
- Other transaction-related amounts

Payment processing times and payout availability may depend upon the third-party provider.

OnlyGigz is not responsible for delays or failures caused by financial institutions, card networks, payment processors, inaccurate banking information, compliance reviews, or circumstances outside OnlyGigz's reasonable control.

## **12. PRICING, PLATFORM FEES, AND COMMISSIONS**

OnlyGigz may charge subscription fees, booking fees, commissions, promotional fees, processing-related charges, or other fees for certain Platform services.

Current pricing and applicable charges will be disclosed through the Platform or the applicable Pricing & Fees Policy before the relevant purchase or transaction.

OnlyGigz may modify its pricing from time to time.

Changes will not retroactively alter the agreed financial terms of a completed Booking unless required by law or agreed by the applicable parties.

## **13. CANCELLATIONS AND REFUNDS**

Cancellations, refunds, deposits, and related obligations are governed by:

- The performance agreement applicable to the Booking
- The OnlyGigz Refunds & Cancellation Policy
- Applicable payment-provider requirements
- Applicable law

Users should review cancellation terms carefully before confirming a Booking.

OnlyGigz may facilitate refunds or payment adjustments when authorized under applicable policies but does not assume the contractual obligations of the Entertainer or Organizer.

## **14. CHARGEBACKS AND PAYMENT DISPUTES**

Users agree not to initiate improper or fraudulent chargebacks.

If a payment dispute or chargeback occurs, OnlyGigz and/or its payment provider may request information from the parties, including Booking records, messages, agreements, proof of performance, cancellation records, or other relevant documentation.

OnlyGigz may suspend payouts or account functionality while a transaction dispute is investigated where permitted by law and the applicable payment provider.

## **15. USER RESPONSIBILITIES**

Users are responsible for their own conduct and contractual obligations.

Entertainers are responsible for matters including:

- Appearing at confirmed performances
- Arriving as agreed
- Performing the agreed services
- Maintaining appropriate equipment
- Complying with venue rules
- Maintaining required licenses, permits, or insurance
- Paying applicable taxes

Organizers are responsible for matters including:

- Providing accurate event information
- Providing lawful and reasonably safe performance conditions
- Providing agreed equipment or production
- Paying amounts due
- Obtaining necessary event or venue permissions
- Complying with applicable laws

## **16. INDEPENDENT CONTRACTOR RELATIONSHIP**

Entertainers using OnlyGigz operate independently.

Nothing in these Terms creates an employment relationship between OnlyGigz and an Entertainer.

OnlyGigz does not control the manner or means by which an Entertainer performs entertainment services.

Entertainers are responsible for their own taxes, insurance, licenses, permits, equipment, personnel, business expenses, and legal obligations.

## **17. TAXES**

Users are responsible for determining and satisfying their own tax obligations arising from transactions through OnlyGigz.

Where required by law, OnlyGigz or its payment provider may collect taxpayer information, issue tax documents, report transactions, or withhold amounts.

## 18. COMMUNICATIONS

OnlyGigz may provide messaging or communication tools.

Users may use these tools only for legitimate purposes relating to Platform activity.

Users may not use Platform communications to:

- Harass or threaten others
- Send spam
- Commit fraud
- Distribute malicious software
- Solicit unlawful activity
- Violate another person's rights

OnlyGigz may preserve communications as necessary to operate the Platform, investigate disputes, enforce these Terms, comply with law, or protect users.

## 19. CIRCUMVENTION AND OFF-PLATFORM TRANSACTIONS

OnlyGigz invests resources in connecting Entertainers and Organizers.

For a period of twenty-four (24) months following the date two users are first introduced or connected through the Platform, users may not use OnlyGigz primarily to identify another user and then intentionally circumvent applicable Platform fees by moving a Booking off the Platform in order to avoid fees that would otherwise apply to a Booking between those parties.

OnlyGigz may suspend or terminate accounts engaged in repeated or intentional fee circumvention.

This provision does not prohibit parties from maintaining independent relationships that existed before their introduction through OnlyGigz, and does not apply to Bookings arranged more than twenty-four (24) months after the parties' introduction through the Platform.

## 20. REVIEWS AND RATINGS

OnlyGigz may permit users to review one another following Platform interactions or Bookings.

Reviews must reflect genuine experiences.

Users may not:

- Submit fabricated reviews
- Manipulate ratings
- Offer compensation in exchange for deceptive reviews
- Threaten another user to influence a review
- Post unlawful, defamatory, or abusive content

OnlyGigz may remove reviews that violate Platform policies but does not guarantee that every review will be accurate or representative.

## 21. FEATURED PROFILES AND PROMOTIONAL PLACEMENT

OnlyGigz may offer optional paid promotional services to Entertainers and Organizers, including Featured Profiles or other visibility enhancements.

Promotional placement may provide increased visibility within certain areas of the Platform.

Purchasing promotional placement does not guarantee views, applications, inquiries, bookings, revenue, or other results.

Pricing, duration, and benefits will be displayed before purchase.

Additional terms may be contained in the Pricing & Fees Policy.

## **22. USER CONTENT**

Users retain ownership of content they submit to OnlyGigz.

By uploading or submitting content, you grant OnlyGigz a non-exclusive, worldwide, royalty-free, sublicensable license to host, store, reproduce, display, distribute, resize, format, and otherwise use that content as reasonably necessary to:

- Operate the Platform
- Display your profile or Gig
- Facilitate bookings
- Promote Platform functionality
- Market OnlyGigz, subject to applicable law and our Privacy Policy

The sublicense described above is limited to service providers and infrastructure partners (such as hosting, content delivery, and cloud storage providers) engaged by OnlyGigz to operate the Platform, and to no other party.

You represent that you own or have permission to use all content you submit.

## **23. COPYRIGHT AND INTELLECTUAL PROPERTY**

Users may not upload content that infringes another person's copyright, trademark, publicity rights, privacy rights, or other intellectual property.

OnlyGigz may remove allegedly infringing content and may terminate repeat infringers where appropriate.

Copyright complaints are handled pursuant to the OnlyGigz Copyright & DMCA Policy.

## **24. ONLYGIGZ INTELLECTUAL PROPERTY**

The Platform and its software, branding, logos, designs, graphics, interfaces, databases, features, trademarks, and other proprietary materials are owned by or licensed to OnlyGigz.

Except as expressly permitted, users may not copy, reproduce, modify, distribute, reverse engineer, scrape, sell, license, or commercially exploit OnlyGigz proprietary materials.

## **25. PROHIBITED CONDUCT**

Users may not:

- Use OnlyGigz for unlawful purposes
- Commit or attempt fraud
- Impersonate another person
- Provide intentionally false Booking information
- Harass or threaten another user
- Interfere with Platform security
- Attempt unauthorized access
- Upload malware or malicious code
- Manipulate reviews



- Create fraudulent Bookings
- Use automated systems to improperly access or overload the Platform
- Infringe intellectual property rights
- Use the Platform to facilitate unlawful services
- Engage in conduct that materially harms OnlyGigz or its users

## **26. SAFETY**

OnlyGigz facilitates introductions between users but cannot guarantee the conduct of any individual.

Users are responsible for exercising reasonable judgment when interacting with others.

OnlyGigz does not guarantee the safety of any venue, event, Entertainer, Organizer, equipment, audience, or location.

Users should take reasonable precautions appropriate to the circumstances.

## **27. DISPUTES BETWEEN USERS**

Disputes relating to performance, cancellation, payment obligations, event conditions, damages, or other Booking matters are primarily disputes between the Entertainer and Organizer.

OnlyGigz may, but is not obligated to, assist users in communicating or provide Platform records relevant to a dispute.

Providing such assistance does not make OnlyGigz responsible for resolving the dispute or liable for either party's obligations.

## **28. THIRD-PARTY SERVICES**

The Platform may integrate with third-party services including payment processors, mapping services, cloud providers, analytics services, electronic signature services, social networks, and other technology providers.

OnlyGigz is not responsible for third-party services outside its reasonable control.

Use of third-party services may be subject to separate terms and privacy policies.

## **29. PLATFORM AVAILABILITY**

OnlyGigz strives to maintain reliable Platform access but does not guarantee uninterrupted availability.

The Platform may occasionally be unavailable because of maintenance, updates, outages, technical failures, security incidents, third-party service interruptions, or circumstances beyond our control.

## **30. NO GUARANTEE OF BOOKINGS OR RESULTS**

OnlyGigz does not guarantee:

- A minimum number of Gigs
- A minimum number of applicants
- A minimum amount of income
- Any particular search ranking
- Successful matching
- Availability of specific users
- Performance quality

- Payment by another user
- Any particular business result

### **31. DISCLAIMER OF WARRANTIES**

**TO THE MAXIMUM EXTENT PERMITTED BY LAW, ONLYGIGZ AND THE PLATFORM ARE PROVIDED “AS IS” AND “AS AVAILABLE.”**

**ONLYGIGZ DISCLAIMS WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, ACCURACY, RELIABILITY, AND AVAILABILITY TO THE EXTENT PERMITTED BY LAW.**

Some jurisdictions do not permit certain warranty exclusions, so portions of this section may not apply to you.

### **32. LIMITATION OF LIABILITY**

**TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, ONLYGIGZ, LLC, INCLUDING ITS MEMBERS, MANAGERS, OFFICERS, EMPLOYEES, CONTRACTORS, AFFILIATES, AGENTS, AND SERVICE PROVIDERS, WILL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, PUNITIVE, OR CONSEQUENTIAL DAMAGES, INCLUDING LOST PROFITS, LOST REVENUE, LOST BUSINESS OPPORTUNITIES, LOSS OF DATA, LOSS OF GOODWILL, OR BUSINESS INTERRUPTION, ARISING OUT OF OR RELATED TO THE PLATFORM, A BOOKING, OR THESE TERMS, EVEN IF ONLYGIGZ HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.**

**WITHOUT LIMITING THE FOREGOING, ONLYGIGZ WILL NOT BE LIABLE FOR DAMAGES, LOSSES, OR CLAIMS ARISING OUT OF OR RELATING TO:**

- The acts, omissions, conduct, representations, or performance of any Entertainer, Organizer, venue, event host, attendee, or other third party
- The cancellation, postponement, interruption, or modification of a Gig or event
- A user's failure to appear, perform, provide agreed services, or make payment
- The quality, suitability, safety, legality, or outcome of any performance, event, venue, or Booking
- Personal injury, death, property damage, theft, or other loss occurring in connection with a Gig, event, venue, or interaction between users, except to the extent liability cannot lawfully be excluded
- Disputes between Entertainers and Organizers
- Information, representations, photographs, videos, reviews, profiles, Gig postings, or other content provided by users or third parties
- Publicly discovered or externally sourced Gig opportunities
- Payment delays, payment failures, chargebacks, holds, account restrictions, or other actions attributable to a third-party payment provider, financial institution, or card network
- Unauthorized access to a user's account resulting from circumstances outside OnlyGigz's reasonable control
- Temporary interruption, suspension, error, or unavailability of the Platform
- Third-party products, websites, applications, integrations, or services
- An event, Gig, or Booking rendered impossible, illegal, or commercially impracticable by a Force Majeure Event as described in Section 32A

#### **Aggregate Liability Cap**

**TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE TOTAL AGGREGATE LIABILITY OF ONLYGIGZ, LLC AND ITS MEMBERS, MANAGERS, OFFICERS, EMPLOYEES, CONTRACTORS, AFFILIATES, AGENTS, AND SERVICE PROVIDERS FOR ALL CLAIMS ARISING OUT OF OR RELATING TO THE PLATFORM OR THESE TERMS WILL NOT EXCEED THE GREATER OF:**

**(A) ONE HUNDRED U.S. DOLLARS (\$100.00); OR**

**(B) THE TOTAL AMOUNT OF PLATFORM FEES, SUBSCRIPTION FEES, COMMISSIONS, OR OTHER FEES ACTUALLY PAID BY YOU DIRECTLY TO ONLYGIGZ DURING THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO THE CLAIM.**

For purposes of this limitation, amounts paid by an Organizer to an Entertainer for entertainment or performance services are not amounts paid to OnlyGigz and will not be included when calculating OnlyGigz's aggregate liability.

The limitations contained in this Section apply regardless of the legal theory upon which liability is asserted, including contract, tort, negligence, strict liability, statutory liability, or otherwise.

Nothing in these Terms is intended to exclude, restrict, or limit liability that cannot lawfully be excluded, restricted, or limited under applicable law.

The limitations in this Section are an essential part of the agreement between you and OnlyGigz and apply to the maximum extent permitted by applicable law.

### **32A. FORCE MAJEURE**

OnlyGigz will not be liable for any failure or delay in performing its obligations under these Terms, and will not be responsible for a Gig's cancellation, postponement, or modification, to the extent caused by circumstances beyond OnlyGigz's or a party's reasonable control, including hurricanes, tropical storms, flooding, and other severe weather events; government orders, evacuation orders, curfews, or declared states of emergency; pandemic or public health emergencies; power or internet outages; acts of God, war, terrorism, or civil unrest; strikes or labor disputes; and failures of third-party payment processors, financial institutions, or infrastructure providers (a "Force Majeure Event").

A Force Majeure Event affecting a specific Booking does not excuse the Entertainer's or Organizer's obligations to each other under the applicable performance agreement; those obligations, including any cancellation, postponement, or refund terms tied to a Force Majeure Event, are governed by the performance agreement and the Refunds & Cancellation Policy.

Given OnlyGigz's Gulf South service area, users acknowledge that hurricane season and severe weather are foreseeable and should plan Bookings, deposits, and cancellation terms accordingly.

### **33. INDEMNIFICATION**

To the extent permitted by law, you agree to defend, indemnify, and hold harmless OnlyGigz, LLC and its owners, members, managers, officers, employees, contractors, affiliates, and service providers from claims, damages, losses, liabilities, and reasonable expenses arising from:

- Your use of the Platform
- Your violation of these Terms
- Your Booking or performance
- Your breach of a performance agreement
- Your content
- Your violation of law
- Your infringement of another person's rights

### **34. ACCOUNT SUSPENSION AND TERMINATION**

OnlyGigz may suspend, restrict, or terminate an account when reasonably necessary because of:

- Violations of these Terms
- Suspected fraud

- Payment abuse
- Repeated cancellations
- Safety concerns
- Harassment
- Intellectual property violations
- Illegal activity
- Platform manipulation
- Conduct that creates material risk to OnlyGigz or its users

Where appropriate, OnlyGigz may provide notice or an opportunity to address the issue.

### **35. EFFECT OF ACCOUNT TERMINATION**

Termination of an account does not automatically eliminate obligations arising from previously confirmed Bookings.

Users remain responsible for outstanding payment, contractual, cancellation, refund, and other obligations.

Sections that by their nature should survive termination will remain effective.

### **36. PRIVACY**

OnlyGigz's collection and use of personal information is governed by the OnlyGigz Privacy Policy.

Users should review the Privacy Policy before using the Platform.

### **37. ADDITIONAL POLICIES**

The following policies, as applicable, are incorporated into these Terms by reference:

- Privacy Policy
- Pricing & Fees Policy
- Refunds & Cancellation Policy
- Copyright & DMCA Policy
- Aggregation Module Sourcing Policy
- Any additional Platform rules or policies expressly incorporated by reference

If a conflict exists between these Terms and a transaction-specific performance agreement, the performance agreement controls the relationship between the Entertainer and Organizer for that Booking, while these Terms continue to govern each user's relationship with OnlyGigz.

### **38. CHANGES TO THESE TERMS**

OnlyGigz may update these Terms periodically to reflect changes to the Platform, business practices, technology, or legal requirements.

The updated Terms will display a revised “Last Updated” date.

Where required by law, OnlyGigz will provide additional notice of material changes.

Continued use of the Platform after updated Terms become effective constitutes acceptance to the extent permitted by law.

### **39. GOVERNING LAW**

These Terms are governed by the laws of the State of Louisiana, without regard to conflict-of-law principles, except where applicable law requires otherwise.

## **40. DISPUTE RESOLUTION; BINDING ARBITRATION; CLASS ACTION WAIVER**

**PLEASE READ THIS SECTION CAREFULLY. IT AFFECTS YOUR LEGAL RIGHTS, INCLUDING YOUR RIGHT TO BRING CERTAIN CLAIMS IN COURT, HAVE A JURY TRIAL, OR PARTICIPATE IN A CLASS ACTION.**

### **40.1 Informal Dispute Resolution**

Before initiating arbitration or other formal legal proceedings against OnlyGigz, you and OnlyGigz agree to first attempt in good faith to resolve the dispute informally.

A party seeking to initiate a dispute must provide written notice describing:

- The name and contact information of the person or entity asserting the claim
- The OnlyGigz account associated with the dispute, if applicable
- A description of the dispute
- The facts giving rise to the claim
- The relief or resolution requested

Notice to OnlyGigz must be sent to:

OnlyGigz, LLC

Attn: Legal

5520 Johnston St. Ste K

Lafayette, Louisiana 70503

Email: [admin@onlygigz.app](mailto:admin@onlygigz.app)

The parties will have thirty (30) days after receipt of the dispute notice to attempt to resolve the matter informally.

Neither party may initiate arbitration until this informal resolution period has expired, except where immediate injunctive or other emergency relief is reasonably necessary.

### **40.2 Agreement to Binding Individual Arbitration**

Except for disputes expressly excluded below, you and OnlyGigz agree that any dispute, claim, or controversy arising out of or relating to:

- These Terms
- Your use of the Platform
- Your OnlyGigz account
- Platform fees or subscriptions
- A Booking facilitated through OnlyGigz
- Communications or transactions occurring through the Platform
- OnlyGigz's services
- The relationship between you and OnlyGigz
- The interpretation, applicability, enforceability, formation, or alleged breach of these Terms

will be resolved through binding individual arbitration rather than in court, to the extent permitted by applicable law.

The arbitration will be conducted by a neutral arbitrator and not by a judge or jury.

### **40.3 Federal Arbitration Act**

This arbitration agreement involves interstate commerce and is governed by the Federal Arbitration Act, 9 U.S.C. §§ 1–16, to the extent applicable.

To the extent state law applies and is not preempted by federal law, Louisiana law will apply as provided in these Terms.

#### **40.4 Arbitration Administrator and Rules**

Arbitration will be administered by the American Arbitration Association (“AAA”) under the applicable AAA Consumer Arbitration Rules or Commercial Arbitration Rules, as appropriate to the nature of the dispute and the parties involved, except where those rules conflict with these Terms.

Information concerning AAA arbitration procedures and applicable rules and fees is available from AAA.

If AAA is unavailable or unwilling to administer a particular dispute, the parties will attempt in good faith to select another nationally recognized arbitration provider. If the parties cannot agree, a court of competent jurisdiction may appoint an arbitrator or arbitration administrator as permitted by applicable law.

#### **40.5 Location and Method of Arbitration**

Unless the parties agree otherwise, arbitration may be conducted through written submissions, telephone, videoconference, or an in-person hearing as permitted by the applicable arbitration rules.

OnlyGigz will not require an individual consumer to travel to Louisiana for an arbitration hearing when applicable law or arbitration rules provide the consumer with the right to participate from another location.

For disputes involving business users where an in-person hearing is required and the parties have not agreed otherwise, the hearing will take place in St. Landry Parish, Louisiana, subject to applicable law and the arbitration administrator's rules.

#### **40.6 Arbitration Fees**

Payment of filing, administrative, and arbitrator fees will be governed by the applicable arbitration rules and applicable law.

OnlyGigz will not require an individual consumer to pay arbitration costs that applicable law requires OnlyGigz to pay.

Each party will otherwise be responsible for its own attorneys' fees and costs unless the arbitrator awards such fees or costs under applicable law, these Terms, or another enforceable agreement.

#### **40.7 Arbitrator's Authority**

The arbitrator may award any remedy or relief that would otherwise be available to the individual party under applicable law, subject to the limitations contained in these Terms.

The arbitrator will issue a written decision sufficient to explain the essential findings and conclusions upon which the award is based.

Judgment upon an arbitration award may be entered in any court having jurisdiction.

#### **40.8 Exceptions to Arbitration**

Notwithstanding the agreement to arbitrate, either party may:

- Bring an eligible individual claim in small claims court
- Seek temporary or preliminary injunctive relief from a court when necessary to prevent immediate and irreparable harm pending arbitration
- Seek relief concerning infringement, misuse, or misappropriation of intellectual property rights where court relief is legally available
- Bring a claim before a governmental agency where applicable law permits the agency to hear the claim

Nothing in this Section prevents either party from reporting suspected unlawful activity to an appropriate governmental authority.

#### **40.9 Disputes Between Entertainers and Organizers**

This arbitration agreement governs disputes between a user and OnlyGigz.

It does not automatically require arbitration of a dispute solely between an Entertainer and Organizer arising under their separate performance agreement unless that performance agreement independently contains an arbitration provision.

OnlyGigz is not a party to the performance agreement between an Entertainer and Organizer merely because OnlyGigz facilitated the Booking or generated the agreement.

#### **40.10 CLASS ACTION AND JURY TRIAL WAIVER**

**TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, YOU AND ONLYGIGZ AGREE THAT CLAIMS AGAINST EACH OTHER WILL BE BROUGHT ONLY IN AN INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF, CLAIMANT, OR CLASS MEMBER IN ANY PURPORTED CLASS, COLLECTIVE, CONSOLIDATED, COORDINATED, OR REPRESENTATIVE ACTION OR PROCEEDING.**

**YOU AND ONLYGIGZ WAIVE THE RIGHT TO A TRIAL BY JURY FOR CLAIMS SUBJECT TO THIS ARBITRATION AGREEMENT.**

Unless both parties agree otherwise in writing, an arbitrator may not consolidate the claims of more than one person or entity and may not preside over any form of class, collective, consolidated, coordinated, or representative proceeding.

If applicable law prohibits enforcement of a particular portion of this waiver for a specific claim or request for relief, that portion will be severed and handled as required by applicable law, while the remaining arbitrable claims will proceed in individual arbitration to the extent permitted by law.

#### **40.11 Right to Opt Out of Arbitration**

You may opt out of the arbitration provisions of this Section by providing written notice to OnlyGigz within thirty (30) days after the date you first accept these Terms.

Your opt-out notice must include:

- Your full name
- The email address associated with your OnlyGigz account
- A clear statement that you wish to opt out of the OnlyGigz arbitration agreement
- The date of the request

Opt-out notices must be sent to:

admin@onlygigz.app

or by mail to:

OnlyGigz, LLC

Attn: Arbitration Opt-Out

5520 Johnston St. Ste K

Lafayette, Louisiana 70503

Opting out of arbitration will not affect your ability to use the Platform and will not modify any other provision of these Terms.

#### **40.12 Claims Not Subject to Arbitration**

If a dispute between you and OnlyGigz is determined not to be subject to arbitration, and applicable law permits the parties to select a forum, the parties agree that the dispute will be brought in a state or federal court of competent jurisdiction located in St. Landry Parish, Louisiana, subject to any mandatory consumer-protection or jurisdictional rights that cannot lawfully be waived.

You and OnlyGigz consent to the personal jurisdiction of such courts for those disputes.

#### **40.13 Severability**

Except as otherwise provided in the class-action waiver above, if any portion of this arbitration agreement is determined to be invalid or unenforceable, that provision will be severed to the minimum extent necessary and the remainder of this Section will remain in effect, to the extent permitted by law.

#### **40.14 Survival**

This Section survives termination of your OnlyGigz account and termination or expiration of these Terms.

### **41. SEVERABILITY**

If any provision of these Terms is determined to be invalid or unenforceable, the remaining provisions will continue in full force and effect to the maximum extent permitted by law.

### **42. NO WAIVER**

Failure by OnlyGigz to enforce a provision of these Terms does not constitute a waiver of that provision or any other right.

### **43. ASSIGNMENT**

Users may not assign their rights or obligations under these Terms without OnlyGigz's prior written consent.

OnlyGigz may assign these Terms in connection with a merger, acquisition, restructuring, financing, sale of assets, or similar business transaction, subject to applicable law.

### **44. ENTIRE AGREEMENT**

These Terms, together with incorporated policies and any applicable Platform-specific terms, constitute the agreement between you and OnlyGigz regarding use of the Platform.

The separate performance agreement between an Entertainer and Organizer governs the entertainment services associated with that Booking.

### **45. CONTACT INFORMATION**

Questions regarding these Terms may be directed to:

OnlyGigz, LLC

5520 Johnston St. Ste K

Lafayette, Louisiana 70503

Email: [admin@onlygigz.app](mailto:admin@onlygigz.app)

Website: [www.onlygigz.app](http://www.onlygigz.app)

### **ACKNOWLEDGMENT**



**BY CREATING AN ACCOUNT OR USING ONLYGIGZ, YOU ACKNOWLEDGE THAT YOU HAVE READ, UNDERSTOOD, AND AGREED TO THESE TERMS OF SERVICE.**